

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501997	CAPITAL ONE N.A. VS MARTINEZ	MOTION TO VACATE DISMISSAL 664.6 AND FOR ENTRY OF JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CAPITAL ONE N.A.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505061	CALIFORNIA CASUALTY INDEMNITY EXCHANGE VS AVALOS	MOTION TO DEEM FACTS ADMITTED BY CALIFORNIA CASUALTY INDEMNITY EXCHANGE

Tentative Ruling: Plaintiff California Casualty Indemnity Exchange's unopposed motion for an order deeming matters admitted is GRANTED. Requests 1 through 4, inclusive, in plaintiff's requests for admissions are deemed admitted for all purposes in this litigation. Defendant Maryssa Ilene Avalos is ordered to pay plaintiff sanctions in the amount of \$360.00 within 15 days of this order. (CCP 2033.280(c).)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507629	BANK OF AMERICA N.A. VS BATAC	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF BANK OF AMERICA N.A. BY BANK OF AMERICA N.A.

Tentative Ruling: Plaintiff Bank of America, N.A.'s unopposed motion for judgment on the pleadings is GRANTED.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges a cause of action for breach of contract. This cause of action requires plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Maria Cindy Batac's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a card to defendant and providing monthly statements; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$2,913.70. Defendant admits as much in her answer. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.